



CHAPTER cxl.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to the Burgh of Govan. A.D. 1904.
—
[22nd July 1904.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirma-
tion of Order
in schedule.

2. This Act may be cited as the Govan Corporation Order Confirmation Act 1904. Short title.

A.D. 1904.

S C H E D U L E.

GOVAN CORPORATION.

Provisional Order to confer further powers on the Town Council of the burgh of Govan and to make further provision for the police and public health and financial administration of the burgh and for other purposes.

WHEREAS the burgh of Govan (in this Order called "the burgh") is managed and administered by the provost magistrates and councillors thereof (in this Order called "the Corporation") under the Burgh Police (Scotland) Acts 1892 to 1903 (in this Order referred to as "the Police Acts") and the Town Councils (Scotland) Acts 1900 and 1903 and the Corporation are also the local authority of the burgh under the Public Health (Scotland) Act 1897 :

And whereas the Corporation are also proprietors of the Govan Burgh Tramways known as the Glasgow Ibrox and Vale of Clyde Tramways leased by them to the Corporation of the city of Glasgow under the lease after referred to :

And whereas the boundaries of the burgh were extended in the year one thousand nine hundred and one and the population now numbers about ninety thousand and is rapidly increasing :

And whereas it is expedient that the further powers contained in this Order should be conferred upon the Corporation with regard to buildings and the police and financial administration of the burgh :

And whereas it is expedient to provide for the constitution of a dean of guild court in the burgh and to regulate its proceedings :

And whereas it is expedient to confer on the Corporation the powers in this Order contained with reference to raising money by bills and promissory notes :

And whereas in order to meet the requirements of the burgh and the proper conduct of the business thereof the Corporation have provided suitable municipal buildings with a view to the offices of the various departments of the Corporation being concentrated in one building and have borrowed money for the purpose of erecting such buildings :

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And whereas it is expedient in consequence of the permanent nature of such buildings that the repayment of the moneys borrowed in respect thereof should be spread over a longer period than that provided for by the Police Acts : A.D. 1904.

And whereas it is expedient to modify the provisions of the Tramways Act 1870 and the Govan Burgh (Tramways) Act 1893 in their application to the Corporation so as to extend the period for the repayment by the Corporation of the sums borrowed by them for the purposes of the Govan Tramways :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

1. This Order may be cited for all purposes as the Govan Corporation Order 1904. Short title.

2. This Order shall come into force from and after the date of the passing of the Act confirming the same which date is hereinafter referred to as “ the commencement of this Order.” Commence-
ment of
Order.

3. The following words and expressions in this Order have the meanings hereby assigned to them (that is to say) :— Interpreta-
tion.

(1) “ The burgh ” means the burgh of Govan according to the existing boundaries thereof or as the same may at any time be extended or altered ;

(2) “ The Police Act of 1892 ” means the Burgh Police (Scotland) Act 1892 ;

(3) “ The Police Act of 1903 ” means the Burgh Police (Scotland) Act 1903 ;

(4) “ The Police Acts ” means the Burgh Police (Scotland) Acts 1892 to 1903 ;

(5) “ The Town Councils Acts ” means the Town Councils (Scotland) Acts 1900 and 1903 ;

(6) “ The Corporation ” means the provost magistrates and councillors of the burgh ;

(7) “ Dwelling-house ” means any house or part of a house occupied as a separate dwelling ;

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(8) Other words and expressions in this Order have the same meaning as in the Police Acts and the Town Councils Acts as the case may be unless there be something in the subject or context repugnant to such construction.

Modification
of Police
Acts.

4. In the application to the burgh of the Police Acts the following provisions shall have effect:—

- (1) The provisions of section 171 of the Police Act of 1892 shall extend to and include any existing tenement of houses which it is proposed to alter in such a manner as to increase the number of dwelling-houses therein:
- (2) The powers and duties conferred or imposed by section 243 of the Police Act of 1892 on the surveyor of the Corporation shall be exercised by the sanitary inspector of the burgh to whom all notices by that section directed to be sent by any owner to the surveyor shall be sent:
- (3) In the application to the burgh of section 51 of the Police Act of 1903 the expression "street" shall include the meanings assigned thereto in section 381 of the Police Act of 1892 and shall also include any common stair or common passage or any open place to which the public have or are permitted to have access within the burgh excepting any property belonging to and used by railway companies for railway purposes.

Constitution
of dean of
guild court.

5. The dean of guild court of the burgh shall consist of a dean of guild and four other members who shall all be members of the Corporation. The dean of guild and other members of the said court shall be elected annually by the Corporation at the meeting at which the annual election of magistrates takes place and they shall hold office until the election of their successors. In the event of any vacancy occurring during any year or in the event of the Corporation failing to elect the members of the said court or any of them at the said meeting the Corporation shall fill up the vacancy or vacancies at a meeting to be held as soon thereafter as possible but the said court may act notwithstanding any deficiency or vacancy in their number so long as a quorum remains in office. The Corporation shall at the time of election prescribe the order of seniority for the purposes of the immediately succeeding section of this Order of the members of the said court. There shall be transferred to the said dean of guild court the whole dean of

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guild jurisdiction whether statutory or at common law possessed by the magistrates of the burgh and by the present dean of guild court and from and after the first election of the dean of guild court under this Order the magistrates shall cease to possess the aforesaid jurisdiction and the present dean of guild court shall be dissolved.

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6. The dean of guild or in his absence one of the other members of the said court according to seniority as such shall preside at meetings of the court and the president shall have a casting vote as well as a deliberative vote Any three or more members of the said court present at any meeting shall constitute a quorum Interlocutors pronounced or ordered at any meeting of the said court shall be signed by the member presiding but deliverances appointing service or intimation of any petition motion or other step of procedure or fixing a diet for hearing parties may be pronounced and signed by any member of the said court without the necessity of a meeting The said court may appoint committees of their number for the purpose of inspecting buildings or streets or disposing of incidental questions arising in any case before them and may delegate any of their powers to the said committees The quorum and convener of any committee shall be fixed by the said court and the convener shall preside and shall have a casting as well as a deliberative vote Except so far as varied by or inconsistent with this Order the provisions of the Police Acts relating to dean of guild courts shall apply to the dean of guild court of the burgh constituted by this Order.

President of
court
quorum &c.

7. Notwithstanding anything in the Police Acts to the contrary and subject as hereinafter provided the Corporation shall not be bound to pay off the money borrowed by the Corporation for the purposes of providing and completing the existing town hall and municipal buildings of the burgh until the expiration of a period of fifty years from the date or dates of borrowing the same Provided that the sum to be annually or semi-annually set apart by the Corporation in pursuance of the Police Acts as a sinking fund for the repayment of the money borrowed for the purposes aforesaid shall be such a sum as would be sufficient with interest on the accumulations thereof at the rate mentioned in the Police Act of 1903 to pay off such money within fifty years from the date or dates of borrowing the same without regard to any sums set apart towards such sinking fund before the commencement of this Order in excess of the amount of the annual or semi-annual sum

Repayment
of money
borrowed for
town hall and
municipal
buildings.

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A.D. 1904. — above mentioned and the interest on the accumulations thereof but the sums so set apart as aforesaid before the commencement of this Order shall nevertheless remain part of the sinking fund and be applicable to the repayment of the said borrowed money.

Repayment
of money
borrowed to
pay cost of
Govan Burgh
Tramways.

8. Notwithstanding the terms of section 20 subsection (2) of the Tramways Act 1870 and sections 29 and 34 of the Govan Burgh (Tramways) Act 1893 the Corporation shall annually set aside in name of sinking fund such sum as shall provide for the repayment so far as not already repaid of the sum of seventy-one thousand one hundred and ninety-one pounds being the total sum sanctioned by the Board of Trade and borrowed and expended for the purposes of the Govan Burgh Tramways not later than the tenth day of July one thousand nine hundred and thirty-five being the date fixed for the termination of the lease between the then commissioners of the burgh (now the Corporation) and the corporation of the city of Glasgow dated the first and twelfth days of November one thousand nine hundred scheduled to and confirmed by the Glasgow Corporation (Tramways and General) Order Confirmation Act 1901.

Existing
securities.

9. Nothing in this Order shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage or the holder of any other security of the Corporation existing at the commencement of this Order except with the consent of such mortgagee or holder.

Provisions as
to raising
money by
bills.

10. Instead of raising for any purposes by the creation and issue of stock or of bonds or mortgages money which they are authorised to raise by either of those methods or instead of borrowing money by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person for the purposes mentioned in section 49 of the Police Act of 1903 the Corporation may if they see fit raise money for those purposes by means of bills subject to and in accordance with the following provisions :—

(1) Bills and promissory notes issued by the Corporation shall be called “ Govan Corporation bills ” :

(2) A Govan Corporation bill shall be a bill in the form prescribed by regulations made in pursuance of this Order for the payment of the sum named therein in the manner and at the date therein mentioned so that the

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date be not less than three or more than twelve months from the date of the bill : A.D. 1904.

- (3) Such bills may be offered for purchase by tender in such manner on such conditions and after public advertisement in such manner as the Corporation determine :
- (4) The bills shall be issued under the authority of a warrant sealed by the Corporation :
- (5) Each bill shall be for the amount directed by the Corporation not being less than five hundred pounds :
- (6) Each bill shall be under the seal of the Corporation :
- (7) A register of the bills issued or renewed by the Corporation shall be kept by the treasurer of the Corporation or such other person as may be appointed by the Corporation and such register shall show the amount of each bill the principal money raised by such bill the statutory borrowing power in respect of which the bill is issued the date of issue the date when the same falls due and the date of payment thereof Such register shall at all reasonable times be open to inspection without payment of any fee by any creditor of the Corporation :
- (8) The Corporation shall not issue bills payable to bearer :
- (9) The Corporation shall before issuing any bill under this Order from time to time make regulations with respect to bills subject to and in accordance with this Order and shall furnish to the Secretary for Scotland a copy of any regulations so made Such regulations shall provide—
 - (A) For regulating the preparation form mode of issue mode of payment and cancellation of bills ;
 - (B) For regulating the issue of a new bill in lieu of one defaced lost or destroyed ;
 - (C) For preventing by the use of counterfoils or of a special description of paper or otherwise fraud in relation to bills ;
 - (D) For the proper discharge to be given upon the payment of a bill :
- (10) The Corporation may enter into such arrangements with any bank for carrying into effect the provisions of this Order with respect to the issue of bills and to the

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payment of the principal sum named therein and to all matters relating thereto and for the proper remuneration of such bank with reference thereto as they may think proper. Such remuneration shall be apportioned between the several funds or rates to which the principal moneys raised by the bills are chargeable :

- (11) The amount of money received by the Corporation in respect of a bill shall be deemed to be principal money raised by means of such bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised :
- (12) The Corporation shall provide from the same source and pay at the appropriate times into a sinking fund or sinking funds the same sums for repayment of the principal money so raised as they would have done if mortgages of the same amount had been issued and such fund or funds shall be dealt with in the same manner as if the same were a mortgage sinking fund and the Corporation shall pay the interest on the principal money out of the fund or rate to which the principal money so raised is charged :
- (13) The aggregate amount payable on bills current at any one time in the case of bills issued temporarily in terms of section 49 of the Police Act of 1903 shall not exceed the sum of ten thousand pounds and in the case of all other bills shall not exceed the sum of fifty thousand pounds except in the latter case by the amount payable on bills issued shortly before any other bills fall due in order to pay off those bills :
- (14) The Corporation may subject to the provisions of the preceding subsection and of section 49 of the Police Act of 1903 renew bills at maturity :
- (15) Money raised by the issue of bills shall be employed by the Corporation for the purposes of the several statutory borrowing powers in respect of which the bills are respectively issued or for the purposes authorised by section 49 of the Police Act of 1903 :
- (16) For the repayment of the principal money raised by bills excepting bills to which section 49 of the Police Act

of 1903 applies the Corporation may raise money by the creation of stock or issue of bonds mortgages or further bills but save as aforesaid the powers given to the Corporation to raise moneys by the creation of stock bonds or mortgages shall be suspended to the extent to which moneys have been raised by the issue of bills:

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(17) A Govan Corporation bill shall entitle the holder to payment at maturity of the sum expressed in such bill to be payable and shall be charged on all the revenues of the Corporation:

(18) The town clerk of the burgh shall within twenty-eight days after the fifteenth day of May in any year during which any bills have been issued or paid off or are outstanding under this section transmit to the Secretary for Scotland a return in such form as the said Secretary may prescribe and containing all such particulars as he may require in regard to the issue and payment of bills by the Corporation:

(19) In this section the words "bill" and "bills" include respectively "promissory note" and "promissory notes."

11. An extract from a minute of meeting of the Corporation or of a committee appointed by the Corporation or a copy of any orders rules or regulations of the Corporation or such committee certified by the town clerk shall be sufficient evidence of what is therein contained and shall be received as evidence in all courts whatsoever.

Evidence of proceedings.

12. Without prejudice to any existing right of His Majesty there shall be exempted from the provisions of this Order every building structure or work vested in or in the occupation of His Majesty either beneficially or as part of the hereditary revenues of the Crown or in trust for the public service or for public services also any building structure or work vested in or in the occupation of any department of His Majesty's Government for public purposes or for the public service.

Exemption of Crown property.

13. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of any funds rates or revenues belonging to them

Expenses Order.

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A.D. 1904. or under their control or out of moneys which the Corporation
— are hereby authorised to borrow for that purpose provided that
any money borrowed for the payment of such costs charges and
expenses shall be repaid within a period not exceeding five years
from the commencement of this Order.

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